

any risk of taking the matter on a contingency basis, which is the nature of the work. (*Id.*, at p. 15). Allowing a multiplier would result in duplicate recovery.

In reply, plaintiff's counsel asserts that it went up against a large corporate defendant that weilded its vast resources, which required tenacious meet and confer and diligent motions practice by the attorney. The plaintiff thus argues that the factors are met and a multiplier is warranted. (Reply, p. 9).

Based on the straightforward nature of the case, lack of demonstration of unique work pointing to a novel or difficult issue, type of case handled by plaintiff's counsel's firm Consumer Law Experts, P.C in the Song-Beverly matter, and resolution via 998 offer by the parties, the Court does not find that the plaintiff has demonstrated that a multiplier is warranted in this matter. The Court DENIES Plaintiff's request for a multiplier.

D. ESTIMATED COSTS

Plaintiff requested \$4,000.00 for anticipated time spent on preparing and submitting a reply brief and appearing for Court. Plaintiff also asserts to having spent five hours reviewing the opposition and drafting a reply for a total expense of \$2,700.00 and expends to spend another two to three hours appearing in court with estimated costs of \$1,080.00 - \$1,620.00. (Reply, at p. 2).

The defendant's oppose awarding any anticipated fees for similar reasons to other fees and costs noted above.

The Court DENIES the requested \$4,00.00 of anticipated time, but GRANTS one hour of attorney's fees for preparation and filing a reply brief at the requested attorney's rate of \$540.00.

I. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$24,320.03 that consists of \$23,5780.03. in attorney's fees and \$540.00 in reply brief preparing and filing.

The unopposed memorandum of costs is GRANTED in the amount of \$3,689.97.

The request for a 1.50 enhancer by the plaintiff is DENIED.

The Court will prepare the formal Order.

Calendar Lines # 3-4
Case Name Joey Mowry vs Daljeet Sagoo
Case No. 25CV457823
Motion to Compel Responses to Form Interrogatories (Line # 3); Motion to Compel Responses to Special Interrogatories (Line #4); and Sanctions
I. <u>BACKGROUND</u>
A. BRIEF FACTUAL BACKGROUND
This case stems from a February 3, 2025 Complaint filed by Plaintiff Joey Mowry ("Mowry") alleging medical malpractice against Defendant Daljeet Sagoo, M.D. ("Sagoo"). (Complaint). On May 19, 2025, Defendant Sagoo filed a demurrer to the plaintiff's complaint and motion to strike portions of the Complaint for punitive damages. The demurrer and motion were unopposed and came for hearing on February 5, 2026, which the court sustained the demurrer with ten days leave to amend and granted the motion to strike.

B. RELEVANT PROCEDURAL BACKGROUND

On March 18, 2026, Defendant Sagoo propounded initial written discovery including form interrogatories (“FROG”), special interrogatories (“SPROG”), request for production of documents, and request for admissions, set one on Plaintiff Mowry via mail service. (Declaration of Fessinger, at p. 7; Exhibit A). Defendants asserts that responses were due on April 23, 2026 (*Id.*). No responses were served. On April 27, 2026, defense counsel sent the plaintiff a meet-and-confer letter setting forth that no responses were served and provided a unilateral extension for responses to be served by May 5, 2026, and that defendant would seek a motion to compel and sanctions if no responses were received. (*Id.*; Exhibit B). Since that time no responses or request for extensions were received by defendant Sagoo. (*Id.*).

On May 15, 2026, Defendant Sagoo filed this present motion to compel FROGs and SPROGS, set one, and sanctions. Defendant also filed motions to compel responses to RFPD and RFA that are set for a later date. The motion was accompanied by a proof of service indicating mail service and electronic mail service on the plaintiff on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 15, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendants moving papers including a notice of motion to compel responses to FROGs, memorandum of points and authorities, Declaration of Robert B. Fessinger in support of the motion to compel responses to FROGS and attached Exhibits A-B (totaling 23 pages); notice of motion to compel responses to SROGS, memorandum of points and authorities, Declaration of Robert B. Fessinger in support of the motion to compel responses to SROGS and attached Exhibits A-B (totaling 20 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, the defendants served the plaintiff with initial discovery, including FROG and SPROG, set one on March 18, 2026. (Declaration of Fessinger, p. 7). Defense asserts that as of the filing of the motion, no responses were received. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)).

The Defendants seek a total of \$960.00 in attorney’s fees and cost for preparing the motion to compel FROGs asserting an hourly rate of \$300.00 and one hour in preparation and one hour in anticipated opposition and \$60.00 in filing fees. The Court notes that the total sum requested is in error as it accounts for three hours. The defense also seeks \$660.00 for the motion to compel responses to SPROGs based on the same hourly rate of \$300 for one hour to prepare the motion, one hour of anticipated time to file a response and appear in court, and \$60.00 for filing fees. The Court will not award hours for anticipated reply briefs as noted above, no opposition papers were filed. Based on the straightforward nature of the motions, the Court reduces the requested number of hours to one hour for each motion at the requested hourly rate of \$300.00 and will award the two separate filing fees. Thus, the requested sanctions in the amount of \$960.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The requested sanctions amount of \$660.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the defendants motion to compel responses to FROG and SPROG, set one. Plaintiff is ORDERED to serve verified responses to FROG and RFPD, set one within 20 days from this hearing date.

Based on the Court’s granting the motion to compel and the plaintiff not serving any responses to FROGs and SPROGs, the defendant’s motion for sanctions against the plaintiff is GRANTED. However, the requested sanctions in the amount of \$960.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The requested sanctions amount of \$660.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The Plaintiff is ORDERED to pay the defendant \$720.00 within 20 days from this hearing date. The Court will prepare the formal Order.

Calendar Line # 6
Case Name Jennifer Voges et al vs Huiqiong Deng et al
Case No. 25CV483365
Demurrer Before the court is defendant El Camino Health dba El Camino Hospital’s demurrer to plaintiff’s complaint for damages. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Jennifer Voges (“Voges”) was a long-term prescribed benzodiazepine user and was in active benzodiazepine withdrawal when she sought and received care from defendant El Camino Health dba El Camino Hospital (“ECH”). (Complaint, ¶8). Despite plaintiff Voges’s benzodiazepine dependence and active withdrawal, defendant ECH staff administered opiates, including morphine and Dilaudid (hydromorphone), creating a high risk combination known to increase respiratory and neurologic dangers. (Complaint, ¶9). As a result of the contradicted opioids, plaintiff Voges suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity and she was then given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal, further destabilizing her condition. (Complaint, ¶10). Plaintiff Voges required Narcan after opiate administration and was given antipsychotic medication that worsened her condition. (<i>Id.</i>). Defendant ECH failed to obtain informed consent for, or disclose, the Narcan administration during or after the event. (Complaint, ¶11). Defendant ECH never informed plaintiff Voges or her family that Narcan had been administered, did not obtain consent, and did not disclose the intervention afterward. (<i>Id.</i>). Plaintiff Voges and her family later discovered this only upon review of medical records. (<i>Id.</i>). Defendant ECH staff refused to provide plaintiff Voges’s baseline, prescribed, benzodiazepine and refused her progesterone, despite documented prescription and visible withdrawal symptoms, accelerating her deterioration. (Complaint, ¶12). Plaintiff Voges received care at defendant ECH between December 31, 2024 and January 8, 2025. (Complaint, ¶2). Rather than stabilizing plaintiff Voges, defendant ECH transferred her to defendant Aspen Skilled Healthcare, Inc. dba Woodlands Healthcare Center (“Woodlands”), a skilled nursing facility, for physical therapy even though she was medically unstable and required medical, not rehabilitative, care beyond the scope of a skilled nursing facility. (Complaint, ¶12). Defendant Woodlands lacked qualified personnel to properly manage benzodiazepine withdrawal and opiate complications. (<i>Id.</i>). Plaintiff Voges’s husband ultimately removed plaintiff Voges and transported her to defendant Stanford Health Care dba Stanford Hospital (“Stanford”) where she was immediately admitted. (Complaint, ¶15). On December 30, 2025, plaintiffs Voges and Darren Voges filed a complaint against defendant ECH, among others, asserting causes of action for: (1) Professional Negligence (2) Medical Battery (3) Negligent Hiring, Supervision, and Retention (4) Negligence Per Se (5) Loss of Consortium On May 19, 2026, defendant ECH filed the motion now before the court, a demurrer to the second and fourth causes of action of plaintiffs’ complaint. <u>II. LEGAL STANDARD</u>